BRENDAN NGEHSI NEWANFORBI
Plaintiff, Pro Se
1455 Cat Tail Drive
Stockton, CA 95204
E-mail: bnn.cdl@gmail.com

**UNITED STATES DISTRICT COURT**

**FOR THE EASTERN DISTRICT OF CALIFORNIA**

**SACRAMENTO DIVISION**

| | |
|---|---|
| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**AGENT A. DERRICK #6910, in his individual capacity; KATIE PALACIOS, in her individual capacity; AGENT G. NOGUCHI #7284, in his individual capacity,**<br><br>Defendants. | Case No.: 2:26-cv-00004-DJC-JDP (PS)<br><br>**NOTICE OF VOLUNTARY DISMISSAL PURSUANT TO FED. R. CIV. P. 41(a)(1)(A)(i) AS TO DEFENDANTS AGENT A. DERRICK AND AGENT G. NOGUCHI ONLY**<br><br>Judge: Hon. Daniel J. Calabretta<br>Mag. Judge: Hon. Jeremy D. Peterson<br>Action Filed: January 5, 2026<br>FAC Filed: January 12, 2026 |

**NOTICE OF VOLUNTARY DISMISSAL PURSUANT TO FED. R. CIV. P. 41(a)(1)(A)(i) AS TO DEFENDANTS AGENT A. DERRICK AND AGENT G. NOGUCHI ONLY**

TO THE CLERK OF THE COURT, ALL PARTIES, AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that, pursuant to Federal Rule of Civil Procedure 41(a)(1)(A)(i), Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing pro se, hereby voluntarily dismisses this action, without prejudice, as to Defendants AGENT A. DERRICK

#6910 and AGENT G. NOGUCHI #7284 only.

Plaintiff is entitled to dismiss as to these Defendants as a matter of right because neither Defendant Derrick nor Defendant Noguchi has served an answer or a motion for summary judgment in this action.

This dismissal does not affect, and shall not be construed to affect, Plaintiff's claims against remaining Defendant KATIE PALACIOS. The action shall proceed solely against Defendant Palacios on all counts of the operative First Amended Complaint.

Dated: July 22, 2026

Respectfully submitted,

/s/ Brendan Ngehsi Newanforbi
BRENDAN NGEHSI NEWANFORBI
Plaintiff, Pro Se
1455 Cat Tail Drive
Stockton, CA 95204
E-mail: bnn.cdl@gmail.com

**CERTIFICATE OF SERVICE**

I hereby certify that on July 22, 2026, I served the foregoing NOTICE OF VOLUNTARY DISMISSAL on all parties of record via the Court's CM/ECF system, and, to the extent required, by First-Class Mail, postage prepaid, addressed as follows:

Erick J. Rhoan, Deputy Attorney General, Attorneys for Defendants Agent A. Derrick and Agent G. Noguchi, 2550 Mariposa Mall, Room 5090, Fresno, CA 93721-2271.

Cynthia G. Lawrence / Bryan L. Malone, Sims, Lawrence & Broghammer, Attorneys for Defendant Katie Palacios, 1478 Stone Point Drive, Suite 450, Roseville, CA 95661.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 22, 2026, at Stockton, California.

/s/ Brendan Ngehsi Newanforbi
BRENDAN NGEHSI NEWANFORBI
Plaintiff, Pro Se